

COMMITTEE ON NATURAL RESOURCES
SENATE AMENDMENTS TO S.B. 1287
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 45-465.03, Arizona Revised Statutes, is amended
3 to read:

4 45-465.03. Right to use groundwater for domestic purposes;
5 stock watering; incidental to irrigation
6 grandfathered right; definitions

7 A. In an ~~initiat~~ active management area, a person who holds a
8 certificate of irrigation grandfathered right has the right to withdraw
9 annually up to ten acre-feet of groundwater for domestic purposes or
10 ~~stockwatering~~ STOCK WATERING from a well or wells the holder is using to
11 withdraw groundwater for irrigation use on the certificated acres and use
12 the groundwater pursuant to subsections B and C of this section if both of
13 the following apply:

14 1. As of ~~June 12, 1980~~ THE DATE OF THE DESIGNATION OF THE ACTIVE
15 MANAGEMENT AREA, groundwater withdrawn from the well or wells was being
16 used for domestic purposes or ~~stockwatering~~ STOCK WATERING.

17 2. No certificate of type 2 non-irrigation grandfathered right has
18 been issued by the director based in whole or in part on the withdrawals
19 for domestic purposes or ~~stockwatering~~ STOCK WATERING.

20 B. Groundwater withdrawn pursuant to this section may be used only:

21 1. On the same land on which groundwater withdrawn from the well or
22 wells was being used for domestic purposes or ~~stockwatering~~ STOCK WATERING
23 as of ~~[June 12, 1980]~~ [THE DATE OF THE DESIGNATION OF THE ACTIVE
24 MANAGEMENT AREA].

25 2. For the same purpose for which groundwater withdrawn from the
26 well or wells was being used as of ~~June 12, 1980~~ THE DATE OF THE
27 DESIGNATION OF THE ACTIVE MANAGEMENT AREA.

28 C. If groundwater withdrawn pursuant to this section is used for
29 domestic purposes and ~~stockwatering~~ STOCK WATERING, the aggregate quantity

1 of groundwater withdrawn for those purposes shall not exceed ten acre-feet
2 per year.

3 D. For ~~THE~~ purposes of this section, a replacement well in the same
4 location or a replacement well in a new location shall be considered to be
5 the same well as the well being used as of ~~June 12, 1980~~ ~~THE DATE OF THE~~
6 ~~DESIGNATION OF THE ACTIVE MANAGEMENT AREA~~.

7 E. If the withdrawals for domestic purposes or ~~stockwatering~~ ~~STOCK~~
8 ~~WATERING~~ are separately measured with a water measuring device approved by
9 the director pursuant to section 45-604, the withdrawals are exempt from
10 the conservation requirements for non-irrigation uses established in the
11 management plans adopted pursuant to article 9 of this chapter.

12 F. If the withdrawals for domestic purposes or ~~stockwatering~~ ~~STOCK~~
13 ~~WATERING~~ are not separately measured with a water measuring device
14 approved by the director pursuant to section 45-604, the withdrawals shall
15 be deemed to be withdrawals for irrigation use on the certificated acres
16 for purposes of determining debits and credits to the flexibility account
17 established pursuant to section 45-467 and for ~~THE~~ purposes of reporting
18 the use to which the groundwater was applied in the annual reports
19 required by section 45-632.

20 G. The right to withdraw and use groundwater pursuant to this
21 section is an incident of an irrigation grandfathered right and may be
22 leased or conveyed with the irrigation grandfathered right.

23 H. If an irrigation grandfathered right is retired or conveyed for
24 a non-irrigation use, the right to withdraw and use groundwater pursuant
25 to this section is extinguished.

26 I. For ~~THE~~ purposes of this section:

27 1. "Certificated acres" means the acres described on the
28 certificate of irrigation grandfathered right.

29 2. "Domestic purposes":

30 (a) Means uses related to the supply, service and activities of
31 households and private residences. ~~Domestic purposes~~

32 (b) Does not include the application of water to produce plants or
33 parts of plants for sale or human consumption, or for use as feed for
34 livestock, range livestock or poultry, as such terms are defined in
35 section 3-1201.

36 3. "~~Stockwatering~~ ~~STOCK~~ ~~WATERING~~" means watering livestock, range
37 livestock or poultry, as such terms are defined in section 3-1201.

38 Enroll and engross to conform

39 Amend title to conform

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